



POLICE DEPARTMENT

November 4, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Trina Douglas
Tax Registry No. 921260
77 Precinct
Disciplinary Case No. 2014-11605

The above-named member of the Department appeared before me on August 25 and October 1, 2015, charged with the following:

1. Said Police Officer Trina Douglas, while assigned to the 77th Precinct on or about November 9, 2012, while on duty, in the vicinity of the 77th Precinct, engaged in conduct prejudicial to the good order and efficiency of the Department, to wit: said Police Officer engaged in a verbal altercation with Police Officer Akiya David which resulted in physical contact. (*As Amended*)

P.G. 203-10, Page 1, Paragraph 5 - PROHIBITED CONDUCT - GENERAL REGULATIONS

The Department was represented by Penny Bluford-Garrett, Esq., Department Advocate's Office, and Respondent was represented by Craig Hayes, Esq.

Respondent, through her counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty.

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SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

This case involves an alleged physical altercation between Respondent and Officer Akiya David inside the 77 Precinct in Brooklyn on November 9, 2012. The Department called Officer David, Sergeant Darren King, and Sergeant Silvia Davis as witnesses.

Officer David testified that she and Respondent had an antagonistic relationship that started the previous year. At that time, David had a dispute with Officer [REDACTED] the "best friend" of Respondent, regarding an office Christmas party. (Tr. 12-14.) Since then, David described having ongoing problems with Respondent. David attributed their difficulties to the friendship between Respondent and [REDACTED] though Respondent, who was a PBA delegate, assured David that she knew how "to separate the two." (Tr. 17, 49, 62, 64)

Shortly before November 9, 2012, David complained that Respondent had unfairly ticketed her car, though David had a difficult time explaining why her car didn't deserve the ticket. She first described her car as being parked in a "law enforcement zone", and repeatedly stressed that she had a parking plaque in the window, though later clarified it was parked on a regular street corner. (Tr. 34-38, 52-53)

On the day of the incident, David reported to work for a court tour. Before she left the precinct for court, David encountered Respondent in the locker room; according to David, Respondent deliberately bumped her into the wall as the two officers passed each other. Respondent asked David if she was okay, David asked the same of Respondent, and Respondent stated that David should stop calling IAB. (Tr. 19, 55, 63)

David acknowledged that she had made IAB complaints against [REDACTED] (Tr. 44-45)

David then saw Respondent walk over to [REDACTED] and say, "Look at that stupid fat bitch sitting over there looking stupid." (Tr. 19)

When she returned from her court appearance, David claimed she again encountered Respondent, this time near the "TS desk" where David was doing paperwork. According to David, Respondent came and hugged David, apologizing for calling her a "stupid bitch." David, though, didn't believe Respondent's gesture was sincere. (Tr. 20-21, 40-41)

Soon after, as David was preparing to leave the precinct at the end of her tour, she approached Respondent on the 1st floor near the "124 Room" and suggested to Respondent that they put their dispute behind them. David testified that Respondent instead called her a rat and a snitch, and said that David "is known for calling IAB." David answered that she was justified in reporting Respondent's friend, Officer [REDACTED] and that Respondent, as a delegate, should be more understanding. (Tr. 21-22, 50-51)

The two continued to exchange words with raised voices, until Sergeant Davis came to the area and escorted David out of the precinct. (Tr. 23-24, 53-54) David, who received a Command Discipline for her behavior that day, acknowledged that other than the locker room bump, there was no physical contact between her and Respondent. (Tr. 24-25, 26)

Sergeant King testified that he was assigned to the desk at the 77 Precinct on the day of the incident. As he was working on the roll call, the sergeant heard the raised voices of David and Respondent; both were yelling, but he couldn't make out what was being said. There were about 10 people in the area. The argument lasted about 20-to-30 seconds, before King separated the two officers, and questioned Respondent about what

had transpired; Respondent assured him that nothing was wrong. (Tr. 68-69, 71) King confirmed that he did not recall seeing any pushing or shoving between the officers, and that he did not ask Respondent to remain at the precinct in order to receive discipline for the incident. (Tr. 71-72)

Sergeant Davis testified that she was a domestic violence supervisor at the 77 Precinct on the day of the incident. The sergeant was inside her office when she heard a loud argument, though she could not hear the specifics of what was being said. She exited her office and observed Respondent and David, face-to-face about a foot apart, arguing with each other. The sergeant claimed she then saw Respondent and David each put their hands up in front of their chests and move their hands forward, making physical contact, before she immediately separated them. (Tr. 87-89, 90-93) The sergeant conceded she did nothing to discipline either officer, allowing each to go on their way after this incident. (Tr. 97)

Respondent's Case

Respondent, who has been assigned to the 77 Precinct for her entire 17 years with the Department, testified that she had no physical contact with David during this incident; the two merely exchanged words near the 124 room, without raising their voices. (Tr. 110, 123) According to Respondent, David had approached her to speak, and then started repeating her concerns about her dispute with Officer [REDACTED] regarding the Christmas CD. Respondent's response was that she couldn't understand why David was still discussing something that had happened so long ago. Another officer escorted Respondent to the DV office, from where Respondent could hear David, still near the 124

room, repeatedly yelling to "call the duty Captain." According to Respondent, it was at that point that Davis went outside the DV office to investigate. (Tr. 105, 108-109)

Respondent acknowledged that she had some prior interactions with David. She had, in the past, suggested to David that she deal with some of her concerns in-house, rather than filing complaints with Inspections. (Tr. 107, 116) Respondent also confirmed that she had bumped into David in the locker room, though she explained it was accidental because of the narrow area where they were passing by each other. Respondent clarified that the locker room bump had occurred more than a week prior to the November 9 incident, and insisted she did not insult David at that time. (Tr. 117, 125) However, Respondent did admit to calling David an "idiot" the day before the incident, because she saw David eating food on the locker room bench, in an unsanitary environment. (Tr. 118)

FINDINGS AND ANALYSIS

Respondent is charged with one specification alleging that she had "a verbal altercation with Police Officer Akiya David which resulted in physical contact." The record failed to prove this conduct by a preponderance of the evidence, and I find Respondent not guilty.

Even with the passage of almost three years, David was excitable on the witness stand as she described the incident of November 9, 2012, as well as the events that preceded it. David was somewhat erratic in recounting her history with Respondent and Officer [REDACTED], jumping back and forth between events in a way that was at times difficult to follow. But on one point, David was quite clear: during her argument with Respondent near the 124 room, there was no physical contact between them.

Both of the sergeants testified that Respondent and David were arguing loudly, though only Sgt. Davis said that she saw some physical contact: she claimed that there was some brief contact after the officers raised their hands. Davis acknowledged, however, that she took no steps to discipline either of the officers, as would have been expected if there was any real type of physical altercation. Sgt. King, who was close by at the front desk, did not recall seeing any physical contact between the parties. And Respondent, who came across as professional and credible on the witness stand, also denied that there was anything physical during the incident.

Rather, the only physical contact between the two officers occurred when they bumped in the locker room. The Department failed to prove that this contact was anything more than incidental, as the two officers walked past each other in a narrow area. In any event, this bump happened separate and apart from the argument near the 124 room that is the subject of this specification; at most, it is background material that provides some minimal context to the incident itself.

Taken as a whole, the evidence fails to persuade this tribunal that there was any physical contact between Respondent and David during the incident. Respondent may well have made inappropriate comments toward David at times, and there evidently was some form of argument between the two officers in front of the 124 room. But as inadvisable as such actions by Respondent may have been, this behavior does not amount to the misconduct alleged in the specification. The Department has failed to prove that Respondent engaged in a verbal altercation that resulted in physical contact with David,

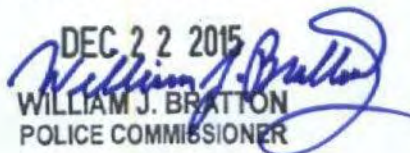
and accordingly I find her not guilty.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner - Trials

APPROVED

DEC 22 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER